

While Plaintiff asserted an objection based on undue burden in response to Interrogatory No. 14.1, Plaintiff offers no evidence which establishes undue burden or a resulting injustice. *West Superior Court* (1961) 56 Cal.2d 407, 417. “The objection based upon burden must be sustained by evidence showing the quantum of work required, while to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.” *West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417. “The objection of burden is valid only when that burden is demonstrated to result in injustice.” *Id.* at 418. Additionally, the untimeliness of Plaintiff’s verified responses results in all objections being waived.

Based on all of the above, further verified responses, without objections, are ordered as to Form Interrogatory Nos. 12.2, 12.3, and 14.1.

Sanctions

No sanctions were sought by Defendant, yet, statutorily, sanctions must be ordered in favor of a party who prevails on a discovery motion. It could be Defendant is waiving this right. Based on the lack of request and lack of information that would allow the Court to fashion an appropriate sanction coupled with the Notice of Non-opposition filed by Plaintiff, the Court declines to order sanctions at this time reserving jurisdiction for a period of fifteen (15) days should counsel for Defendant file a declaration re sanctions and get the matter back on calendar.

9. CU0002187 MA Construction et al v. Li, Jingwen et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendants via some approved method after the Notice of Rejection was served on December 16, 2025. Absent good cause being shown, the Court intends to set the matter for dismissal pursuant to CCP section 583.420.

10. CU0002287 Kimberly Faggianelli et al vs. Michael Gardner et al

No appearances required. On the Court’s own motion, the OSC as to Plaintiffs is DISMISSED. Plaintiffs have now filed a proof of service evidencing service of the summons and complaint on both named defendants, and, in fact, Defendants have filed their Answer. The case management conference date remains as set.